

TENTATIVE RULING

Case: **Zhou v. Hotel Winters, LLC**
 Case No. CV2022-1963

Hearing Date: **February 13, 2026** **Department Eight** **9:00 a.m.**

The Court, in its discretion, considers defendant and judgment creditor Hotel Winters, LLC's ("defendant") untimely opposition, filed February 6, 2026. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers"]; Dillon decl., ¶¶ 2-6.)

As the Court is considering the late-filed opposition, on its own motion, the Court **CONTINUES** plaintiff Xinyao Zhou's motion to vacate attorney fee award and charging order based on extrinsic fraud and defendant's motion to foreclose charging order to **March 13, 2026**, at 9:00 a.m. in Department Eight. Plaintiff may file an amended reply in support of her motion to vacate attorney fee award by **February 23, 2026**. (See Code Civ. Proc., § 1005, subd. (b).)